Sesi Tlou is an activist and member of Women for Equality in Africa (WEA), an NGO that has as its main objective the liberation of women from patriarchy and male domination. Its focus is particularly on eradicating the scourge of rape, murder, and abuse of women throughout Africa. The Commission on Gender Equality (CGE) and civil society organisations have actively supported the work of WEA.

Sesi has however, become very unpopular with the local Chief and some of the men in her community who are resisting change and oppose the principle of gender equality. They have established an organisation promoting the notion of a patriarchal man in the society. They believe that the abuse of women is justified because they belong to men, and they promote institutional prejudice and undermining of women in many aspects of life including their exclusion from executive positions in companies and in government.

The recent spate of femicide in the Northern Cape in South Africa has also put a spot light on the problem of the abuse of women and gender inequality, prompting Sesi Tlou and her organisation to launch a campaign in Kimberley to raise awareness within society.

However, at the launch of her campaign she was suddenly arrested by the SAPS without any reasons and detained without a charge in Kimberley. She was not read her rights and since her arrest she has been held in solitary confinement and denied access to her lawyer and family. She is also denied all forms of reading material. It has been a few days now and she has not been brought before the court.

Tsakane, a colleague of Sesi, who is also a member of WEA approaches you seeking legal assistance because of your track record as a human rights and constitutional lawyer. Consider the questions below and write your responses for each.

Open Rubric

QUESTION 1 [3]

Identify the various constitutional rights that have been infringed in the arrest and detention of Sesi Tlou? Briefly explain each right with reference to the facts of the case.

QUESTION 2 [5]

Tsakane enquires from you about her *locus standi* and that of the NGO to institute legal proceedings. The Commission for Gender Equality (CGE) and the local clergy also want to know if they can join in the proceedings and support Sesi.

QUESTION 3 [7]

How can the parties and members of Sesi Tlou's group get direct access to the Constitutional Court? Explain your answer with reference to the provisions in the Constitution, Rules of Court and relevant case law.

QUESTION 4 [5]

Tsakane considers this matter to be of great magnitude. Consider what it means for WEA to apply to be admitted as a friend of the Court (*amicus curiae*), and whether it would be better for them to apply to be joined in the proceedings. In your answer describe the requirements to be admitted as an *amicus curiae* and advise on the route the NGO should follow, and why.

QUESTION 5 [5]

List and briefly discuss the various Constitutional Court remedies available to the parties in these proceedings.

TOTAL: [25]

FACTS:

Ms Lilly Mackenzie, a 34 year old South African citizen, is currently living abroad where she teaches English at a local Elementary School in Suwanee, Georgia (USA). She holds a South African bar-coded ID document and she is on the national voters' roll. The South African National Elections have approached and she is eager to partake and exercise her rights as a South African national.

Upon contacting the Electoral Commission in South Africa she is informed that, as a citizen working and living abroad, she is not eligible to apply for a special vote abroad and therefore she would need to forego her opportunity to cast her ballot. Seeing no other option, she immediately leaves for South Africa so she can cast her vote at her demarcated voting station.

Ms. Mackenzie is an avid supporter of Political Party ABC, and arrives at her voting station in full ABC party regalia. Upon her arrival she is halted by party agents from Political Party XYZ, blocking the entrance to the voting station and who threaten her by making intimidating remarks regarding her regalia. They inform her that she is not permitted to wear ABC party regalia at that particular polling station and should she wish to enter the polling station she must vote for XYZ. Fearful that she will not have the opportunity to vote she agrees and enters the station.

Once she receives her ballot papers she is accompanied to the voting booth by a representative from XYZ who proceeds to help her mark the correct party on the list, and to place her ballots in the correct ballot boxes.

Relieved that she got the opportunity to vote she leaves the voting station to visit her brother John who is currently serving a prison sentence for armed robbery. He informs her that he did not get the opportunity to vote since there were no opportunities to register in prison. There were also no arrangements made for prisoners who were registered to vote to cast their ballots.

Happy to have seen her brother she returns to her teaching position in the USA. There she consults an attorney on South African Constitutional Law and proceeds to inquire about her rights and whether any of her or her brother's rights had been infringed in any way.

Write a legal opinion to Ms Mackenzie in which you explain in detail which rights, if any, were violated in the facts above. Be sure to make use of all applicable legislation and case law to support your findings.

Note that your answer may not exceed 10 pages **TOTAL: 25 MARKS**